

CFES

*CANADIAN FEDERATION
OF ENGINEERING STUDENTS*



FCEG

*LA FÉDÉRATION CANADIENNE
ÉTUDIANTE EN GÉNIE*

Canadian Federation of Engineering Students

Membership Bylaws

English Edition

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1 Terms & Definitions

Term	Definition
CFES	Abbreviation for the Canadian Federation of Engineering Students
Articles	The original or restated articles of incorporation or articles of amendment, amalgamation, continuance, reorganization, arrangement or revival of CFES.
Resolution	A motion presented as a proposal and approved by majority vote, or the applicable voting threshold if otherwise specified
Special Resolution	A Resolution approved by a two-thirds (2/3) majority vote
Member, Member Society	A recognized engineering student society representing students at a Canadian post-secondary institution that has been admitted to membership in the CFES in accordance with this Constitution
National Executive Leadership Team	The President and the Vice-Presidents
CFES Team	The Directors and National Executive
Activity	The Leadership Team, Commissioners, and Activity Managers
Host Society	A conference, competition, or other event organized by the CFES for its Members
Activity Manager(s)	The Member Society responsible for an Activity of the CFES
General Meeting	The person chiefly responsible for the organization of an Activity on behalf of a Host Society
CELC	A meeting of the Members
CSE	The Canadian Engineering Leadership Conference
CEC	The Conference on Sustainability in Engineering.
CESS	The Canadian Engineering Competition
SDES	The Canadian Engineering Spring Summit, where the Annual General Meeting is held
CDE	The Summit on the Development of Engineering Societies
	The Conference on Diversity in Engineering

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**Document of
Stances**

A document that contains the official positions taken by the CFES.

2 Membership

2.1 Membership Fees

2.1.1 Purpose

1. Paying the CFES membership fee maintains a Member's status, which includes:
 - (a) Eligibility for participation in CFES Activities and services
 - (b) Eligibility to bring forward motions at General Meetings
 - (c) Voting rights at General Meetings
2. The membership fee for each Member shall be calculated based on its number of full-time engineering undergraduate students, plus any additional students who have opted into CFES membership.
3. The membership fees shall be collected at the beginning of the CFES fiscal year, using headcounts from the prior academic year.
4. Membership headcounts shall be submitted to the VPF by each member school no later than November 1st.

2.1.2 Outstanding Membership Fees

1. Members shall have no voting rights, until such time that membership fees are paid.
2. A Member that did not attend any General Meeting and did not pay its membership fee on time must be contacted by the relevant Regional Ambassador to assess its future as a Member of the CFES.

2.2 Membership Withdrawal

1. Any Member may withdraw from the CFES by delivering a written resignation to the Vice-President Finance of the CFES.
2. The withdrawal shall take effect the first day of the month immediately following reception of the notice.
3. Any membership fees incurred to-date prior to withdrawal remain payable to the CFES.

2.2.4 Grace Period

1. The withdrawn Member may immediately return to being a Member without needing to go through the formal membership application process, provided that by SDES of the fiscal year following their withdrawal the Member:
 - (a) Notifies the Board with written proof of support from their engineering society
 - (b) Pays the membership fees to be up to date with dues
 - (c) Has not withdrawn twice within the last 12 months

2.3 Member Student Opt-In

1. Members may decide to opt in all students they represent, including those who are not either enrolled in an accredited engineering program or enrolled in a program in the process of accreditation into the CFES membership.
2. Members who wish to opt-in additional students to the CFES must submit this request to the Vice-President Finance before July 1st of the year prior to the membership fee due date.
3. The CFES' responsibility to Members opted in this way is limited to providing access to its Activities.
4. Students who are not opted in shall not be permitted to attend CFES Activities or gain from the services it provides, unless an exception is granted by a Resolution of Board.

3 General Meetings

3.1 Meeting Guidelines

3.1.1 Calling a Meeting

1. A General Meeting shall be called upon Resolution of the Board or on a written requisition of no less than 5% of the Members.

3.1.2 Live Translation

1. At every General Meeting, simultaneous translation services shall be available, whether they be professionally outsourced or member-led.

3.1.3 Notice of a meeting

1. A twenty-one (21) day written notice shall be given to Members of any General Meeting.
2. No error or omission in giving notice of any General Meeting of the CFES shall invalidate such meeting or make void any proceedings taken thereat.

3.1.4 Voting and Quorum

1. All Members shall have one (1) vote.
2. All questions before the General Meeting shall be determined by a majority of votes of Members present and voting unless otherwise specified.
3. Two thirds (2/3) of the Members shall constitute quorum at a General Meeting.

3.1.5 Speaking Rights

1. Members and the Leadership Team shall have speaking rights during General Meetings.

3.1.6 Order

1. At all General Meetings, the Chair must apply the rules of deliberating assemblies as outlined in the Robert's Rules of Order, except where contrary dispositions are adopted by the CFES.
2. The Chair shall preside over General Meetings.

3.1.7 Representative

1. A Member shall, by means of verifiable communication by its President, appoint a representative to attend and act at a specific General Meeting.
2. Notice of each General Meeting must remind the Members of their ability to appoint a representative.
3. All representatives must be a member student of the Member Society or of another Member Society of the CFES.
4. All proxy voting regulations shall additionally comply with Section 74 of the Canada Not-for-Profit Corporations Regulations.

3.1.8 Minutes

1. Minutes shall be taken in both English and French at all General Meetings.
2. The full and proper text of the minutes shall be distributed to all Members in both English and French within thirty days of the adjournment of the meeting.

3.2 Pre-General Meeting Videos

1. The National Executive may create videos prior to any Activity that involves a General Meeting to ensure members are informed about relevant topics to the conference; including but not limited to the policies being discussed and ongoing mandates.

2. The total duration of these videos shall not exceed 30 minutes, and videos must be provided a minimum of 1 week before the conference begins.

4 Other Meetings of the Members

4.1 Bootcamp

1. Bootcamp shall be an online gathering of Members and the CFES Team whose purpose is to host training sessions and discussions, along with networking.
2. Bootcamp shall take place in June, or July.

4.2 Online Seasonal Update Meetings (OSUMs)

1. The CFES shall hold two remote meetings to bridge the gap between General Meetings.
2. These meetings shall be an online gathering of Members and the CFES Team.
3. The focus of these meetings shall be for the CFES Team to give updates to the Members on progress on their portfolios, projects and advocacy work.
4. These meetings shall also include opportunities for Members to provide feedback.
5. These meetings shall be scheduled with one taking place before SDES and another before CELC.
6. Organization of these meetings and agendas are the responsibility of the Chair with support from relevant members of the CFES Team.

5 Advocacy

5.1 Document of Stances

1. The Document of Stances contains the official positions taken by the CFES.
2. Stances contained in the Document may be added or modified by a $\frac{3}{4}$ Resolution of the General Meeting passed to that end.
3. Stances may also be removed by a Resolution of the General Meeting.
4. Modifications to the Document require two readings, and amendments to the modification may be put forth at the second reading.
 - (a) Modifications to the Document may be made in exception to these requirements with approval of 90% of Members present.

5. The National Executive is responsible for alerting the Members to the procedure surrounding the Document of Stances in advance of SDES, as well as conducting background research to ensure that potential stances are generally beneficial for all Members, and alerting the Members to any associated implications in advance of the vote.

6 Bilingualism

1. Members shall have the right to communicate with and receive communications from the CFES Team in the official language of their preference.
2. Members shall have the right to request the translation of any CFES document from one official language to another.

7 Member Discipline

1. The Board shall have authority to suspend or expel any Member from the CFES for any one or more of the following grounds:
 - (a) violating any provision of the Articles, Constitution, Bylaws, or Policies of the CFES;
 - (b) carrying out any conduct which may be detrimental to the CFES as determined by the Board in its sole discretion;
 - (c) for any other reason that the Board in its sole and absolute discretion considers to be reasonable, having regard to the purpose of the CFES.
2. In the event that the Board determines that a Member should be expelled or suspended from membership in the CFES, the Chair shall provide twenty (20) days notice of suspension or expulsion to the Member and shall provide reasons for the proposed suspension or expulsion. The Member may make written submissions to the Chair in response to the notice received within such twenty (20) day period. In the event that no written submissions are received by the Chair, the Chair may proceed to notify the Member that the Member is suspended or expelled from membership in the CFES. If written submissions are received in accordance with this section, the Board will consider such submissions in arriving at a final decision and shall notify the Member concerning such final decision within a further twenty (20) days from the date of receipt of the submissions. The Board's decision shall be final and binding on the Member, without any further right of appeal.

8 Amendments

1. Subject to the Articles, the Board may, by Resolution, make, amend or repeal any provisions of these Bylaws that regulate the activities or affairs of the CFES, except in respect of matters referred to in subsection 197(1) of the Act.

2. Any such amendment or repeal shall be effective from the date of the Board Resolution until the next General Meeting where it may be confirmed, rejected or amended by the Members by Resolution.
 - (a) If the amendment or repeal is confirmed or confirmed as amended by the Members, it remains effective in the form in which it was confirmed.
 - (b) The amendment or repeal ceases to have effect if it is not submitted to the Members at the next General Meeting or if it is rejected by the Members at the General Meeting.
 - (c) If an amendment or a repeal ceases to have effect, a subsequent Board resolution that has substantially the same purpose or effect is not effective until it is confirmed, or confirmed as amended, by the Members at a General Meeting.
 - (d) This does not apply to any amendment that requires a Special Resolution of the Members under subsection 197(1) (fundamental change) of the Act because such amendments or repeals are only effective when confirmed by the Members.

9 Invalidation

1. The invalidity or unenforceability of any provision of these Bylaws shall not affect the validity or enforceability of the remaining provisions of these Bylaws. If any of the provisions contained in the Bylaws are inconsistent with those contained in the Constitution, the Articles or the Canada Not-For-Profit Corporations Act, the provisions contained in the Constitution, the Articles or the Act, as the case may be, shall prevail.
2. Titles inserted in these Bylaws are included only to facilitate reading and should not affect their interpretation.
3. In these Bylaws and in all other documents of the CFES hereafter passed, unless the context otherwise requires, words importing the singular number shall include the plural number, and vice versa, and references to persons shall include firms and corporations.
4. In the case of a discrepancy between the English and French versions of these Bylaws, the English version takes precedence.

10 Superseding

1. In the event of a conflict between these Bylaws and the following documents, the following documents shall prevail in the order in which they are listed:
 - (a) The Canada Not-For-Profit Corporations Act
 - (b) The Articles
 - (c) The Constitution